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Public Statement

Publication or distribution of ESG ratings by third parties in the period from 2 July 2026 until authorisation, recognition or registration of ESG rating providers

Background

The ESGR Regulation (the 'Regulation')[1] will apply from 2 July 2026.

This Regulation introduces a common regulatory approach to enhance the integrity, transparency, comparability, responsibility, reliability, good governance and independence of ESG rating activities. In this regard, the Regulation requires ESG rating providers who are issuing and publishing or distributing ESG ratings in the Union to apply to ESMA for authorisation.

Pursuant to Article 51 of the Regulation, existing ESG rating providers other than small ESG rating providers[2] who wish to continue operating in the Union must notify ESMA of their intention to apply for authorisation by 2 August and apply for authorisation no later than 2 November. Small ESG rating providers who wish to benefit from the temporary regime must notify ESMA no later than 2 November 2026.

Exemption under Article 2(2)(k) of the ESGR Regulation

Article 2(2) of the Regulation provides for a number of exemptions to its scope of application.

In particular, Article 2(2)(k) exempts ESG ratings issued by an "*authorised ESG rating provider*" where such ratings are published or distributed by a third party.

This exemption aims to avoid a duplicative application of the Regulation's requirements when ESG ratings produced pursuant to the Regulation are subsequently published or distributed by third parties. In practice, this could cover a scenario where a financial undertaking, such as a fund manager, publishes or distributes the ESG ratings of an ESMA authorised ESG rating provider as part of their marketing material.

[1] https://eur-lex.europa.eu/eli/reg/2024/3005/oj/engRegulation (EU) 2024/3005 of the European Parliament and of the Council of 27 November 2024 on the transparency and integrity of Environmental, Social and Governance (ESG) rating activities, and amending Regulations (EU) 2019/2088 and (EU) 2023/2859 (OJ L, 2024/3005).
[2] 'Small ESG rating providers' refers to those ESG rating providers who are eligible for, and choose to register under, the Temporary Regime for small ESG rating providers as set out under Article 5 of the Regulation.

Issue encountered

There is a need to provide the market with clarity as to whether third parties that are publishing or distributing the ESG ratings of existing, but still unauthorised, ESG rating providers will be able to continue doing so from 2 July 2026.

Statement

To avoid market disruption and ensure the effectiveness of the transitional regime, ESMA deems it appropriate to clarify how it will apply this exemption in the time-period from 2 July to 2 November 2026.

To this end, ESMA:

- recalls that ESG rating providers other than small ESG rating providers who wish to continue operating in the Union after 2 July 2026 shall notify ESMA by 2 August 2026 of their intention to apply for authorisation or recognition and shall then also submit their application for authorisation or recognition by 2 November 2026 at the latest;

- recalls that small ESG rating providers who wish to continue operating in the Union shall notify ESMA by 2 November 2026 of their intention to benefit from the temporary regime for those providers;

- considers that from 2 July 2026 third parties may continue publishing or distributing the ESG ratings of such ESG rating providers until ESMA has adopted a decision to grant or refuse the application for authorisation or recognition, or to register the notifier as a small ESG rating provider, as relevant. To this end, ESMA will publish and update at regular intervals a list of entities that have notified it of their intention to continue operating in the Union after that date.

After 2 November 2026, it will no longer be possible for third parties to publish or distribute the ESG ratings of an ESG rating provider, unless such provider (i) has submitted an application for authorisation or recognition, or has submitted a notification for registration under the temporary regime for small ESG rating providers; and (ii) is listed in the Article 14 register[3] that will become available on the ESMA website.

After 2 November 2026, third parties should consult this register to determine the identities of the ESG rating providers from which it will be possible to continue to publish or distribute ESG ratings.

[3] In accordance with Article 14 of the Regulation, ESMA shall establish and maintain a publicly accessible register on its website, which shall contain, among other elements, the identities of ESG rating providers authorised pursuant to Article 8, recognised pursuant to Article 12 or registered pursuant to Article 5 of the Regulation. ESMA shall also temporarily list in the same register ESG rating providers who have notified it of their intention to continue operating in the Union in accordance with Article 51 of the Regulation.